THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o n the International Maritime Organization concerning the functions o f the Marine Enviro nment Protection Committee conferred upon it by international conventions for the preven tion and control of marine pollution from ships, RECALLING ALSO article 16 of the Intern ational Convention for the Prevention of Pollution from Ship s, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the - from Ship s, 1973, as modified by the Protoco l of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering and adopting a mendments thereto, HAVING CONSIDERED, at it s seventy -sixth session, proposed amendment s to MARPOL Annex I concerning the prohibition on the use and carriage for use as fuel o f heavy fuel oil by ships in Arctic waters, which were circulated in accordance with art icle 16(2)(a) of MARPOL, 1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendm ents to MARPOL Annex I, the text of which is set out in the annex to the present resolut ion; 2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL, that the amendmen ts shall be deemed to have been accepted on 1 May 2022 unless prior to that date not les s than one third of the Parties or Parties the combined merchant fleets of which constit ute not less than 50% of the gross tonnage of the world's merchant fleet have communicat ed to the Organization their objection to the amendments; 3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, - constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to the amendments; 3 INVITES the Parties to note that, in accordance wit h article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 Novemb er 2022 upon their acceptance in accordance with paragraph 2 above; 4 REQUESTS the Secre tary-General, for the purposes of article 16(2)(e) of MARPOL, to transmit certified copi es of the present resolution and the text of the amendments contained in the annex to al l Parties to MARPOL; 5 REQUESTS ALSO the Secretary-General to transmit copies of the pre sent resolution and its annex to Members of the Organization which are not Parties to MA RPOL.

RESOLUTION MEPC.329(76) (adopted on 17 June 2021) AMENDMENTS TO THE ANNEX OF THE INTERNA TIONAL C